

Authority for Personal Data
 P.O. Box 93374, 2509 AJ The Hague
 Hoge Nieuwstraat 8, 2514 EL The Hague
 T 070 8888 500 - F 070 8888 501
autoriteitpersoonsgegevens.nl
 The State Secretary for Finance - Benefits and Customs
 Drs. A.C. Van Huffelen
 P.O. Box 20201
 2500 EE THE HAGUE

Date

August 19, 2021

Our reference

z2021-10869

Your letter dated

May 25, 2021

Contact person

Your reference

2021-101303

Subject

Amendment to the Customs Act

Dear Mrs. Van Huffelen,

In a letter dated May 25, 2021, the Authority for Personal Data (AP) was consulted pursuant to Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR) regarding the draft amendment to the General Customs Act (hereinafter: the draft).

In the explanatory memorandum, the intrusion that customs camera surveillance makes into personal privacy is overly relativized, resulting in an inadequate assessment of proportionality. Additionally, the proposed provision of data by customs to the Royal Marechaussee (KMAR) and police is insufficiently limited. The AP objects to these points in the draft and advises against continuing the procedure unless the objections are resolved.

Scope of the draft

The General Customs Act (Adw) is amended on three points.

1. Use of camera footage

Customs has been using camera surveillance for several years. Examples include cameras deployed at airports to assess in real-time which passengers are invited for additional checks. Camera footage is also used to monitor the flow of goods in the Port of Rotterdam. It is proposed to include a provision in the Adw aimed at explicitly establishing the authority to exercise customs supervision using camera footage in the law.¹

2. Provision of data by customs to KMAR and police

It is proposed to include a legal basis in the Adw under which customs can provide data to the Royal Marechaussee (hereinafter: KMAR) and the police for their tasks arising from the Aliens Act 2000 and the Police Act 2012, respectively.

3. Provision of data by customs to WGS cooperation partnerships

It is proposed to include a legal basis for providing data to participants in a cooperation partnership that falls under the scope of the Data Processing Cooperation Partnerships Act (hereinafter: WGS).² This concerns the Financial Expertise Center (FEC)³, the Infobox Criminal and Unexplained Wealth (iCOV)⁴, and the Regional Information and Expertise Centers (RIEC's)⁵.

Advice

Degree of intrusion of camera surveillance

In the explanatory memorandum, the intrusion that camera surveillance makes into personal privacy is strongly relativized:

“The Customs primarily focuses on the presence and movement of goods. The involvement of individuals with those goods is only of secondary importance as actors and not for their identity. Camera surveillance is, for customs supervision, particularly a continuation of physical goods supervision with other means (remote supervision).”⁶

Earlier in the explanatory memorandum, however, it is stated:

“...cameras that are deployed at airports to assess in real-time which passengers are invited for additional checks. This concerns passengers who exhibit unusual behavior which may indicate smuggling of goods.”⁷

1 For the camera surveillance that has actually been exercised for several years, the minister currently states that there is already a “general authority” under Article 46 of Regulation (EU) No. 952/2013 (Union Customs Code) and paragraph 1.2.4 of the Adw.

2 The WGS is currently still pending as a bill in the Senate. The AP previously advised very critically on the bill (Parliamentary Documents II 2019/20, 35 447, no. 3, annexes Advice of the Authority for Personal Data and Additional Advice of the Authority for Personal Data). The Senate posed additional questions to the AP on April 19, 2021 (Parliamentary Documents I 2020/21, 35 447, no. C). The AP is still processing these questions.

3 Article 2.3 WGS. See, however, the last part of the advice below.

4 Article 2.11 WGS.

5 Article 2.19 WGS.

6 Explanatory memorandum, p. 3.

7 Explanatory memorandum, p. 1.

Date

August 19, 2021

Our reference

z2021-10869

3/5

The AP would like to assume that customs primarily focuses on goods. However, goods have an owner⁸ and this legal relationship is, even in the context of the customs task, evidently relevant. The example illustrates this as well.

By positioning personal privacy as secondary, the concept overlooks the infringement that camera surveillance entails. It is too easily concluded that the use of camera footage is proportional.⁹

The AP advises that the explanatory memorandum should pay more attention to the impact of camera surveillance on individuals¹⁰ in order to subsequently make a better-founded assessment between this impact and the necessity of the proposed camera surveillance.

Visibility of camera surveillance

Article 1:23a, third paragraph, Adw states that “the presence of a technical device [...] is to be clearly made known to anyone who enters or is present at the relevant locations.”

This provision is in line with Articles 12 and 13 of the GDPR, which, regarding camera surveillance, have been elaborated in the EDPB Guidelines on processing of personal data through video devices¹¹.

However, in Article 1:23a, seventh paragraph, under b, Adw, there is a possibility for an exception to this information obligation.¹² The explanatory memorandum does not indicate how this exception relates to the information obligation under the GDPR.

The AP advises clarifying the relationship between the exception mentioned in Article 1:23a, seventh

paragraph, under b, Adw, and the information obligation under the GDPR in the explanatory memorandum.

Provision of data to police and KMAR even without “reasonable suspicion”?

Currently, information exchange between customs on the one hand and the police and KMAR on the other is only possible in the investigation phase with a reasonable suspicion that a criminal offense has been committed. The KMAR or police can then request the transfer of data found by customs. With the new Article 1:33a Adw, it is achieved that information about goods and individuals under whom the goods are located can also be shared even if there is (still) no reasonable suspicion of a criminal offense. However, the provision must be “necessary for the execution of the tasks of the Royal Marechaussee and Police under the Police Act 2012 or the Aliens Act 2000.”

8 Or possessor.

9 Explanatory memorandum, p. 3.

10 Whether or not in combination with goods.

11 EDPB Guidelines 3/2019 on processing of personal data through video devices, version 2.0, adopted on January 29, 2020, p. 26-27.

12 In fact, the concept is also internally contradictory at this point, as Article 1:23a, third paragraph, under b, Adw, is unconditional, while Article 1:23a, seventh paragraph, under b, Adw, does indeed provide for an exception.

Date

August 19, 2021

Our reference

z2021-10869

4/5

This raises the question of in which situations customs data is needed for the police or KMAR while there is (still) no reasonable suspicion of a criminal offense. The explanatory memorandum does not provide an answer to this – apart from two arbitrary, not very strong examples.¹³

The explanatory memorandum also does not clarify how and to what extent the data will be provided: for example, will bulk data provisions be included that the police and KMAR could later use for fishing expeditions?¹⁴

With these uncertainties, this data provision seems to be hardly limited – despite the confidentiality obligation resting on customs.¹⁵ The commitment in the explanatory memorandum that the provision of data to KMAR and the police will be assessed for proportionality and necessity is not specific enough and adds nothing to the existing GDPR requirements.¹⁶

The AP advises to describe much more precisely in which cases customs data is needed for the police or KMAR while there is (still) no reasonable suspicion of a criminal offense. It should also be indicated in what form and extent this data will be provided, and what safeguards will be put in place to limit this data provision to what is necessary.

Relationship with Multidisciplinary Intervention Team (MIT)

The provision of data to the police and KMAR primarily serves the “fight against organized undermining crime.”¹⁷ Reference is made to the cabinet policy in this regard, as laid down in the letter from the Minister of Justice and Security dated June 18, 2020.¹⁸ In this context, the establishment of the so-called Multidisciplinary Intervention Team (MIT) is particularly relevant for customs. Customs, police, and KMAR participate in the MIT¹⁹ and the MIT utilizes the “common information position” of the participating parties.²⁰

It is unclear whether Article 1:33a Adw also concerns the data exchange within the MIT or whether both are entirely separate.

The AP advises to clarify whether Article 1:33a Adw pertains to the data exchange within the MIT.

13 Examples mentioned are (1) during a customs inspection, various identity documents are found in

one suitcase, and (2) the police is working on a project regarding transport crime and is interested in the data of transport companies that customs has under its jurisdiction. In example (1), a criminal offense can indeed be suspected (see, for example, Article 231, first paragraph, Penal Code and Chapter X Passport Act). Example (2) is not very strong for another reason: the fact that the police is “interested” in certain customs data as part of a broad project does not lead to the conclusion that this data is also “necessary.”

14 Fishing expedition - Wikipedia.

15 Article 12 Union Customs Code.

16 Article 5, first paragraph, under c, GDPR.

17 Explanatory memorandum, p. 1,3.

18 Parliamentary documents II 2019/20 29911, no. 281.

19 Parliamentary documents II 2019/20 29911, no. 281, p. 6.

20 Parliamentary documents II 2019/20 29911, no. 281, p. 5.

Date

August 19, 2021

Our reference

z2021-10869

5/5

Provision of data to the Financial Expertise Center (FEC)

In the explanatory memorandum, the Financial Expertise Center (FEC) is mentioned as a WGS collaboration to which customs can provide data.

Article 1:33b Adw states that customs provides data and information about goods and the persons who have or have had the goods to the participants of collaborations mentioned in or pursuant to the WGS, in which customs participates.

However, customs is not a participant in the FEC. Although the national tax authority – of which customs is a part²¹ – is mentioned in Article 2.3 WGS, this participation is limited to the exercise of the statutory tasks and powers under or pursuant to the tax law mentioned in Article 2, first paragraph, part a, of the aforementioned law, the Collection Act 1990, and the supervision of compliance with the Act on the Prevention of Money Laundering and Terrorist Financing.²² The General Customs Act and the Union Customs Code are not mentioned here, which means that customs is not a participant in this collaboration according to the WGS.

The AP therefore advises to remove this passage from the explanatory memorandum.

Disclosure of the advice

The AP intends to make this advice public on the website www.autoriteitpersoonsgegevens.nl as soon as the text of the (amended) draft is made public. The AP would like to know the expected timing of the disclosure as soon as it is known.

Sincerely,

Dutch Data Protection Authority,

ir. M.J. Verdier

Vice Chair

21 Article 2, first paragraph, Implementation Regulation Tax Authority 2003.

22 Article 2.3, first paragraph, under d WGS.